

TURKS AND CAICOS ISLANDS

PLANT HEALTH ORDINANCE

(Legal Notice 25 of 2024)

PLANT HEALTH REGULATIONS 2024

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SCHEDULE Fees for Plant Health Services

TURKS AND CAICOS ISLANDS
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MADE by the Minister under sections 19(3), 34(4), 44(4), 53(3) and 59 of the Plant Health Ordinance.

PART 1

PRELIMINARY

Citation and commencement

1. These Regulations may be cited as the Plant Health Regulations 2024 and shall come into operation on the 15th day of July 2024.

Interpretation

2. In these Regulations—

“activity”, in respect of a thing, means the processing, handling, packaging, labeling, distributing, sale, disposition, loading, unloading, movement, use, treatment, preservation, safeguarding or storage of the thing;

“competent authority” of a country means the governmental or other authority in the country responsible for plant protection and plant quarantine and for issuing phytosanitary certificates;

“contracting party” means a party to the IPPC;

“CPHD” means Caribbean Plant Health Directors Forum;

“CPM” means the Commission on Phytosanitary Measure of the IPPC;

“inspection” means an official visual examination of a regulated article to determine if it is or is infected by a plant pest, done in compliance with phytosanitary requirements;

“phytosanitary certificate for re-export” means a phytosanitary certificate that indicates that a thing is considered to

conform with the laws of the importing country requesting phytosanitary import requirements, to which is attached a copy of the original phytosanitary certificate from the country of origin;

“plant import permit” means a permit issued under section 35 of the Ordinance;

“reciprocating country” means a country that is engaged in trade in agricultural produce with the Islands;

“WTO SPS Agreement” means the World Trade Agreement on Sanitary and Phytosanitary Measures, 1985.

PART 2

FUNCTIONS OF THE SERVICE - SUPPLEMENTARY

Additional functions of the Service

3. (1) Pursuant to its functions under section 5 of the Ordinance, the Service shall—

- (a) develop and implement international standards for phytosanitary measures relevant to the operational system of the Service;
- (b) adopt and implement WTO SPS Agreement recommendations, including the basic WTO SPS principles relevant to trade in plants and plant products.

(2) The Service shall take all reasonably practicable steps to—

- (a) reduce the likelihood of plant pests from entering, becoming established or spreading in the Islands;
- (b) prepare and allow for effective responses to, and management of, new and emerging plant pests that enter, establish or spread in the Islands; and
- (c) ensure that, where appropriate, quarantine plant pests already in the Islands are contained, suppressed or otherwise managed.

(3) The regulations under this Part supplement and do not derogate from the functions of the Service set out in section 5 of the Ordinance.

Plant pest surveillance

4. (1) In conducting plant pest surveillance as contemplated by section 5(1)(b) of the Ordinance, the Service shall—

- (a) utilize Global Positioning System (GPS) or equivalent technology as a standard protocol for plant pest surveillance;
- (b) identify areas such as farms, plant nurseries etc. where surveillance is required; and
- (c) conduct specific surveys (detection, delimiting, monitoring) where necessary.

(2) The Service shall establish an electronic database where collected information is stored and can be easily accessible.

(3) Surveillance reports shall be distributed to all relevant stakeholders upon request.

(4) Surveillance data shall be kept safe under the control of the Service for future use.

Plant inspections

5. (1) In conducting inspections of plants and plant products as contemplated by section 5(1)(c) of the Ordinance, the Service shall—

- (a) adopt the guidelines set out in ISPM 23 for the inspection of regulated articles;
- (b) conduct inspections in the presence of the importer, the importer's agent, or a customs official;
- (c) conduct inspections in an area free of contagion and that poses no or negligible risk of plant pest infestation;
- (d) examine import/export documents for completeness, consistency, accuracy and validity; and
- (e) examine documents and articles to verify compliance with import/export phytosanitary regulations.

(2) The Service shall prepare a detailed report on inspection activities, which shall be made available to the parties concerned. The report shall state the name of the property owner, reason for inspection, time and date of entry and inspection, list of regulated articles inspected, and the action/s taken based upon the inspection findings.

Disinfestation

6. (1) In applying disinfestation to a regulated article or consignment of regulated articles as contemplated by section 5(1)(d) of the Ordinance, the Service shall use the following methods, as appropriate, or any other phytosanitary treatment measures recommended by the Chief Plant Protection Officer—

- (a) methyl bromide fumigation;
- (b) hot water treatment;
- (c) irradiation;
- (d) chemical spraying; and
- (e) washing with potable water.

(2) The Service may require the disinfestation, by any means it directs, of any vessel or aircraft, or of the footwear (or the feet if footwear is not worn) of any person arriving in any vessel or aircraft—

- (a) used for the transportation of plants and plant products; or
- (b) arriving from any country in which there is known to the Service to be an outbreak of a quarantine plant pest.

Plant pest-free zones

7. In designating, maintaining and surveying a plant pest-free zone as contemplated by section 5(1)(e) of the Ordinance, the Service shall observe the principles of ISPM 4.

Plant pest risk assessment

8. (1) In performing plant pest risk assessment pursuant to section 5(1)(f) of the Ordinance, the Service shall have regard to the following categories—

- (a) commonly imported regulated articles that are associated with plant pests of economic importance to the Islands;
- (b) plant pests of economic significance;
- (c) requests for the importation of a new species of plant or plant product;
- (d) any plant material that would be introduced into the Islands for the first time and has the potential to pose a significant risk; and

- (e) organisms not previously recognized as plant pests (such as plants, biological control agents or other beneficial organisms, living modified organisms).

(2) The Service shall also maintain records of recognized plant pests and pathways and any review of phytosanitary policy.

Auditing and traceback

9. In order to perform its function under section 5(1)(j) of the Ordinance, the Service shall—

- (a) ensure that consignments and their certification are traceable as appropriate through all stages of production, handling and transport to the port of export;
- (b) advise an importing country as soon as practicable of the obvious plant pest risk posed by a consignment, even after certification of the consignment; and
- (c) routinely assess and evaluate the import/export system effectiveness and usefulness.

Focal Point

10. (1) In order to perform its function under section 5(1)(m) of the Ordinance, the Service shall establish a Focal Point for the sharing of technical information regarding plant health with international counterparts and organizations, upon request.

(2) The Focal Point shall encourage technical cooperation and transparency with contracting parties, reciprocating countries and other stakeholders.

(3) The Chief Plant Protection Officer shall be the Focal Point of the Service.

Early detection system

11. (1) In order to perform its function under section 5(1)(n) of the Ordinance, the Service shall—

- (a) develop tools and techniques to improve early detection of plant pests in surveillance programmes; and
- (b) educate farmers and the general public in order to stimulate early reaction and coordination for control and prevention of plant pests.

(2) The activities contemplated by subregulation (1) include, but are not limited to—

- (a) requiring plant nurseries, landscapers, farmers and other relevant individuals and/or entities to duly report all incidents of new plant pests discovered on their establishments;
- (b) encouraging registered establishments to provide regular reports on plant pest infestations and/or incursions;
- (c) developing and coordinating a functional Early Detection and Rapid Response System for plant pests in collaboration with private and governmental organisations; and
- (d) devising a priority list of plant pests and sharing the list with all stakeholders.

Plant pest emergency plan

12. In order to perform its function under section 5(1)(o) of the Ordinance, the Service shall—

- (a) devise a functional plant pest emergency plan, including the establishment of plant pest-free zones, quarantine areas, and compensation for farmers, where necessary; and
- (b) ensure that the plan is activated when necessary to mitigate and /or control a plant pest outbreak or incursion.

Phytosanitary measures

13. (1) In order to perform its function under section 5(1)(q) of the Ordinance, the Service shall—

- (a) develop and publish phytosanitary measures that are equivalent to those of reciprocating countries;
- (b) work collaboratively with reciprocating countries to ensure that all phytosanitary measures are harmonious;
- (c) notify reciprocating countries and other stakeholders immediately of any revision made to its phytosanitary measures that will affect the established import/export system; and
- (d) ensure that all phytosanitary measures are in congruence with ISPM principles for the protection of plants and the application of phytosanitary measures in international trade.

(2) In order to perform its function under section 5(1)(s) of the Ordinance, the Service shall do as regulation 30(1) requires.

International reporting

14. (1) In order to perform its function under section 5(1)(u) of the Ordinance, the Service shall—

- (a) notify the IPPC CPM of the occurrence and status of any plant pest outbreak or incursion in the Islands;
- (b) notify the IPPC CPM on the areas that are designated as plant pest-free or of low plant pest prevalence;
- (c) notify the IPPC CPM of changes made to the phytosanitary measures and provide a full account of the phytosanitary measures adopted specifically to address an outbreak;
- (d) apprise the IPPC CPM of any Rapid Response System in place under regulation 11(2)(e);
- (e) submit a description of the Service and of changes in organisational structure to the Secretary of the IPPC;
- (f) provide a description of the organisational arrangements for plant protection to a reciprocating country upon request;
- (g) disseminate information regarding plant pests and means of their prevention and control to the IPPC, CPHD, and contracting parties; and
- (h) provide necessary scientific evidence for the reciprocating country to conduct its own pest risk analysis.

Communication, training, and public awareness

15. In order to perform its function under section 5(1)(v) of the Ordinance, the Service shall –

- (a) ensure that local users and suppliers of biological control agents or other beneficial organisms, and farmers, farmer organisations and other stakeholders, are kept sufficiently informed and educated on the appropriate measures for their use;
- (b) apprise farmers and the general public of plant pest outbreaks and/or incursions, and recommend strategies for plant pest control and eradication;

- (c) inform the general public on plant food recalls, and changes of plant pest status nationally and regionally; and
- (d) conduct plant protection training targeting Quarantine Officers, Customs officers, farmers, importers, and other relevant stakeholders.

PART 3

POWERS OF THE SERVICE – SUPPLEMENTARY

Powers of entry, search and seizure

16. (1) In exercising the power of entry, search and seizure under section 7 of the Ordinance an animal inspector shall—

- (a) notify the owner or manager of the plant establishment of the intent to enter and search before or at the time of inspection;
- (b) inform the owner or manager of the purpose of the inspection before or at the time of inspection; and
- (c) attach a detention tag to the premises or articles under seizure.

(2) Any detention tag attached under subregulation (1) shall bear the same detention number as the notice of detention.

(3) After a search has been completed the plant inspector shall—

- (a) provide a report to the owner or manager subsequent to the inspection, stating the date and time inspection was conducted and a list of the articles examined;
- (b) provide the owner or manager with copies of photographs, laboratory reports etc. of any animal disease found on the premises; and
- (c) give detailed recommendations for corrective actions to be taken if any animal disease is found on the premises.

(4) Except as authorised by the Service, no person, other than a plant inspector, may—

- (a) alter, deface or erase any information on a notice of detention or a detention tag;
- (b) remove a detention tag; or

- (c) undertake any activity in respect of an article that is detained.

(5) If it would be impracticable for a plant inspector to remove a detention tag, any plant inspector may authorise a person in writing to do so on the plant inspector's behalf.

Detention of articles

17. (1) For the purposes of section 52 of the Ordinance the period of detention is 180 days—

- (a) if required to permit a plant inspector to identify a virus, viroid, mycoplasma, mycoplasma-like organism, rickettsia-like organism, bacterium or fungus that is present or suspected of being present in an article;
- (b) if fraud has occurred or is suspected; or
- (c) to identify, test or analyze an article that has been grown, raised, cultured, produced or altered by biotechnology.

(2) If in accordance with the Ordinance an article or any proceeds realized from its disposition may no longer be detained, a plant inspector shall release the article or proceeds from detention and serve a notice of release from detention on the owner or person having the possession, care or control of the article.

Treatment, processing or disposition of regulated articles

18. (1) In exercising the powers under section 8 of the Ordinance, the Service shall destroy or decontaminate infested or contaminated items utilizing only an IPPC recommended method, including incineration, burying, chemical spraying and irradiation.

(2) In addition to the powers in section 25 of the Ordinance, if a plant inspector believes on reasonable grounds that a regulated article is a plant pest or is or could be infested or contaminated or constitutes or could constitute a biological obstacle to the control of a plant pest, the plant inspector may require the owner or person having the possession, care or control of the article to dispose of it or arrange for treatment of it that will reduce or eliminate the plant pest risk.

(3) A requirement under subregulation (3) shall be communicated by serving a notice in writing on the owner or other person, and the notice shall specify the manner of disposition or method of treatment and the place of disposition

and the date by which the disposition or treatment shall be completed.

(4) If, pursuant to subregulation (2), a plant inspector requires that an article be disposed of—

- (a) the plant inspector may also require the owner or person having the possession, care or control of the article to treat or cause to be treated any place or article in or on which the article to be disposed of was placed, contained, stored, detained or quarantined; and
- (b) no person may undertake any other activity in respect of the article without the approval of a plant inspector.

(5) An owner or other person who receives a notice referred to in subregulation (3) or (4) shall ensure that –

- (a) the disposal, treatment or process in respect of an article or place is carried out in accordance with the notice and any other instructions issued by a plant inspector in respect of the disposal, treatment or process; and
- (b) the plant pest or biological obstacle to the control of a plant pest is eradicated and the spread of the plant pest or biological obstacle is prevented.

Sampling

19. (1) In conducting sampling of a consignment of a regulated article as contemplated by section 9 of the Ordinance, the Service shall—

- (a) collect samples of the consignment in the presence of the importer, owner or agent of the consignment;
- (b) vary sample sizes depending on the nature of the articles;
- (c) ensure that sample sizes do not exceed 10% of the consignment for any reason;
- (d) ensure that collected samples are carefully wrapped and secured in sealed, labelled containers and pose no or minimal risk of becoming contaminated with external agents;
- (e) ensure that collected samples are properly secured in the presence of the importer, owner, or agent;

- (f) ensure that samples are stored in an area which will not cause additional contamination or infestation; and
- (g) follow the specific guidelines as set out in ISPM 31 for sample collection during the inspection of regulated articles.

(2) Section 9 of the Ordinance applies as to providing copies of test results and other matters in relation to samples.

Authorised laboratories and analysts

20. Subject to the power of authorization in section 17 of the Ordinance, and until that power is exercised, the Service shall utilize only—

- (a) the services only of laboratories accredited to conduct entomological and pathological analysis of plants and plant products;
- (b) the services of an individual with the technical training to analyze plant samples; and
- (c) the services of a laboratory facility with the competency to conduct analysis of plant and plant product samples.

Plant quarantine

21. (1) If the Service proposes to apply quarantine measures pursuant to section 30 of the Ordinance, a plant inspector shall—

- (a) specify in writing the period of the quarantine and the conditions necessary for the purpose of detecting a plant pest or biological obstacle to the control of a plant pest or preventing or controlling the spread of a plant pest or biological obstacle to the control of a plant pest;
- (b) serve a notice of quarantine on the owner or person having the possession, care or control of the article unless it is specified in a permit that the article is to be quarantined; and
- (c) attach a quarantine tag to the article or its container.

(2) Any quarantine tag shall bear the same quarantine number as the notice of quarantine or, if it is specified in the permit that an article be quarantined, the quarantine tag shall bear the permit number.

(3) Except as authorised by a plant inspector, no person, other than a plant inspector may—

- (a) alter, deface or erase any information on a notice of quarantine or a quarantine tag; or
- (b) remove a quarantine tag.

(4) If it would be impracticable for a plant inspector to remove a quarantine tag, any plant inspector may authorise a person in writing to do so on the plant inspector's behalf.

(5) A plant inspector may authorise an activity in respect of a quarantine article where the activity is necessary in order to carry out the quarantine or would not adversely affect the quarantine.

(6) A plant inspector shall recommend to the Chief Plant Protection Officer the release from quarantine of an article or portion of the article if the plant inspector considers that –

- (a) the article or portion is not a plant pest, or is not or could not be infested;
- (b) the article or portion does not or could not constitute a biological obstacle to the control of a plant pest;
- (c) the plant pest has been eradicated from the article or portion; or
- (d) the article or portion no longer constitutes a biological obstacle to the control of a plant pest.

(7) A plant inspector who releases an article or a portion of the article from quarantine shall serve a notice of release from quarantine on the owner or person having the possession, care or control of the article.

Plant quarantine stations and areas

22. If a plant quarantine station is to be established or designated under section 31 of the Ordinance, the Service shall ensure that—

- (a) the area chosen for the station is isolated from cropped areas and is weed free;
- (b) a sign board of suitable size is erected at the entrance of the station indicating a restricted area;
- (c) entry to the station is authorised only by the Chief Plant Protection Officer or the direct supervisor of the station;

- (d) a buffer zone of not less than 4 metres is maintained in vegetative free condition around the perimeter of the station; and
- (e) permanent structures are fully enclosed with double doors, insect proof screens and other basic features to prevent the entry and exit of plant pests.

PART 4

IMPORTATION OF REGULATED ARTICLES

Prohibition on landing

23. (1) Without affecting the powers of inspection under section 40 of the Ordinance, a Customs officer or plant inspector may refuse permission for a vessel or aircraft to offload cargo or any part of it if the officer or inspector has reasonable grounds to believe that the cargo or that part of it includes a regulated article that is a prohibited import or is or is infected by a plant pest that poses a serious plant pest risk to the Islands.

(2) This power may be exercised whether or not a plant import permit has been issued in respect of the regulated article, but the Director shall be notified of any action taken under sub-regulation (1) as soon as possible so that the import permit can be revoked or varied or confirmed and any other necessary enforcement action taken in respect of the article.

Ports of entry

24. (1) A regulated article shall be presented at a port of entry during regular working hours fixed by the Service.

(2) A plant inspector or customs officer may require in writing that any regulated article entering the Islands be directed to another port of entry for the purpose of inspecting the article.

(3) If, pursuant to subregulation (2), a plant inspector or customs officer has required a regulated article to be directed to another port of entry, no person may -

- (a) move the article to any place except the place indicated; or
- (b) open any conveyance or unpack any package containing the article,

except as authorised by a plant inspector or customs officer.

Mail exchange

25. (1) The mail exchange on Providenciales is a biosecurity postal holding area where, subject to subregulation (2), postal items arriving from overseas or destined for overseas may be held for plant pest risk inspection pending clearance or other disposition under the Ordinance.

(2) Subregulation (1) only applies to regulated articles that at the time of entry to or departure from the Islands are in a mail bag or other container that conforms to the requirements of the postal legislation of the Islands.

(3) Regulated articles from or destined for overseas that arrive in or depart from the Islands by courier, or are delivered to households or businesses by courier, are not postal items and are subject to the provisions of the Ordinance regarding regulated articles.

Plant import permits

26. (1) A plant import permit shall be in a form established by the Service, and shall set out—

- (a) all information reasonably necessary to identify the regulated article;
- (b) the conditions, if any, under which the article to be imported may be admitted into the Islands and governing the article after it has entered the Islands; and
- (c) the expiration date of the permit.

(2) A plant import permit remains in force for the period specified in the permit, unless cancelled under section 35(4) of the Ordinance but may on its expiration be renewed by the Service, if it thinks fit, on application being made in the approved form.

(3) If an application for a plant import permit under section 35 of the Ordinance contains any false or misleading information—

- (a) the Service shall refuse to issue a permit; or
- (b) the permit if issued is void from the date of its issuance.

(4) If a foreign exporter has shipped to the Islands any article that is an invasive plant species or that is or has a plant pest or that contravenes any provision of or under the Ordinance, the Service may revoke a permit issued to any person, or refuse to issue a permit in respect of the article to any person, to import

from that foreign exporter or from the country or place of origin or reshipment until the article complies with the Ordinance or the foreign exporter has given a written undertaking to comply with it.

Application for a plant import permit

27. (1) In addition to the requirements in section 35(2) of the Ordinance, an application for a plant import permit shall—

- (a) be in writing, in English, signed and dated by the person applying for the permit; and
- (b) contain the following information—
 - (i) both the common and scientific names of the articles;
 - (ii) the quantity of items in weight, in Kilograms (Kg);
 - (iii) the name, complete address and telephone number of the importer or agent of the consignment;
 - (iv) the name, complete address and telephone number of the exporter;
 - (v) the intended use or purpose for which the article thing is to be admitted into the Islands;
 - (vi) the place where the article was propagated or produced; and
 - (vii) the number of packages, if sent by mail or courier service.

(2) An application for an import permit shall be accompanied by an international phytosanitary certificate from a country approved by the Director under section 37(3) of the Ordinance, except that—

- (a) applications from the US and Canada do not require an international phytosanitary certificate until the articles arrive in the Islands; and
- (b) an import permit may be issued without an international phytosanitary certificate if the exporting country requires TCI Department of Agriculture's authorisation before providing a phytosanitary certificate to the importer.

(3) The international phytosanitary certificate in respect of a regulated article shall include the following information—

- (a) official name, stamp or seal of the competent authority;
- (b) a unique certificate number;
- (c) particulars of treatment applied to the article, including application date, chemical, concentration, and any relevant additional information;
- (d) name and address of the exporter;
- (e) name and address of the importer or consignee;
- (f) name and quantity of the articles, including botanical names where applicable;
- (g) number and description of packages;
- (h) means of conveyance;
- (i) place of origin of the articles;
- (j) port of entry in the Turks and Caicos Islands; and
- (k) signature of the authorised officer in the exporting country.

(4) The certificate shall indicate that the articles have been inspected and found to be free of plant pests and shall have been issued within 7 days of export.

(5) If the regulated articles were trans-shipped via another country and repackaged, an international phytosanitary certificate from the competent authority in the transit country shall be obtained stating that the regulated articles did not leave the quarantine area (noting the time in quarantine) and were not exposed to any plant pest of quarantine significance.

(6) In the case of a trans-shipment where the regulated articles were kept in another country for more than 24 hours or were re-packaged or split up, a re-forwarding phytosanitary certificate from the country where the articles were trans-shipped is required.

(7) If an international phytosanitary certificate is in a foreign language, a certified English translation shall be attached.

(8) A person applying for a permit shall, if required by the Service, provide to the Service, prior to the issuance of the permit—

- (a) proof of ownership or custodianship of the regulated articles;

- (b) laboratory test results of the article to be imported, without charge to the Government, for examination purposes; and
- (c) evidence that the person has adequate facilities for inspection and, if necessary, for quarantine of the article.

Plant import conditions

28. (1) In order to perform its functions under sections 5(1)(r) and 36 of the Ordinance, the Service shall—

- (a) revise and amend import conditions based upon plant pest risk assessment or new information on invasive plant species or plant pests that can potentially affect the country;
- (b) notify all stakeholders of any changes made to the import conditions; and
- (c) notify the IPPC CPM of any changes made to the import conditions.

(2) If the Service considers that it is necessary to prevent the introduction into the Islands or the spread within the Islands of any invasive plant species or plant pest, the Service shall amend a permit by adding, removing or amending a condition or any information set out in it.

(3) The Service may revoke a permit issued to a person or refuse to issue any other permit to a person if the Service decides that the person has not complied with—

- (a) any condition set out in the permit; or
- (b) any provision of or under the Ordinance.

(4) A permit may include a condition that the holder keeps a record in a form established by the Service and containing information about activities undertaken in respect of the article to which the permit relates. In such a case, the permit holder shall—

- (a) produce the record, on request, for inspection or copying by a plant inspector; and
- (b) retain the record for a period specified in the permit.

(5) If the Service—

- (a) considers that a person to whom a permit has been issued has not complied with any condition set out in the permit; or

- (b) believes on reasonable grounds that there is an infestation in the country of origin or the country from which the article was reshipped,

a plant inspector may detain the article or prohibit its admission into the Islands or may order that it be disposed of.

PART 5

EXPORT OF REGULATED ARTICLES

Security of exports

29. (1) No person may export or re-export a regulated article from the Islands unless it meets the laws of the receiving country respecting phytosanitary import requirements.

(2) Any article which is to be exported shall be packaged, contained and moved in such a manner as to prevent the article from spreading a plant pest or biological obstacle to the control of a plant pest.

(3) No person may export from the Islands anything for which a phytosanitary certificate, phytosanitary certificate for re-export or any other document is required by the authority responsible for control of imports in the country of final destination, unless the appropriate document is issued by a plant inspector.

(4) If the Service believes on reasonable grounds that a vessel or aircraft that is about to leave the Islands has on board or is about to load any plant or plant product that is or could be infested or that constitutes or could constitute a biological obstacle to the control of a plant pest, a plant inspector may, in order to inspect the vessel or aircraft for the presence of a plant pest, require the owner or person having the possession, care or control of the vessel or aircraft to—

- (a) halt the loading (if in process); or

- (b) unload the vessel or aircraft (if already loaded).

(5) If the inspector considers that the vessel or aircraft or any of its cargo is infested or constitutes or could constitute a biological obstacle to the control of a plant pest, the inspector may require the owner or person having the possession, care or control of the vessel or aircraft to —

- (a) treat or clean the vessel or aircraft; and

- (b) treat, move or dispose of anything found on or in the vessel or aircraft which may impose a phytosanitary risk.

Export documentation

30. (1) The Service shall—

- (a) develop phytosanitary certificates for the export of plants and plant products in accordance with ISPM 12;
- (b) conduct inspection of articles and certify their freedom from plant pests prior to the issuance of the phytosanitary certificate;
- (c) ensure the safety of the articles from infestation between inspection and departure from the Islands;
- (d) assess the phytosanitary situation and define an appropriate period of validity before export occurs, taking into account the likelihood of the consignment becoming infested or contaminated prior to export or re-export.

(2) The likelihood mentioned in sub-regulation (4)(d) may be affected by packaging (sealed carton or loose packing) and storage environment (open air or enclosed), type of commodity and conveyance, time of year and type of plant pests.

(3) A plant inspector may issue a phytosanitary certificate or phytosanitary certificate for re-export or any other document required by the appropriate authority in the country of final destination only if the plant inspector believes on reasonable grounds that the article to be exported conforms with the laws of that country respecting phytosanitary import requirements.

(4) A phytosanitary certificate or phytosanitary certificate for re-export or any other document issued for the purposes of the Ordinance is void if any person other than a plant inspector has altered, defaced or erased any information or statement in the certificate.

(5) If a phytosanitary certificate or phytosanitary certificate for re-export is required by the phytosanitary certification authorities of a foreign country with respect to any thing that is to be exported from the Islands, a plant inspector may inspect the conveyance prior to its being loaded and at any time during the loading.

PART 6
MISCELLANEOUS

Movement of things in a plant pest zone

31. (1) If and where a plant pest zone has been designated under section 22 of the Ordinance, a plant inspector may in writing authorise a person to move anything that is prohibited from being moved into, out of or within the zone if the plant inspector is satisfied that the thing is being moved for the purpose of being used for scientific research, educational, processing, industrial or exhibition purposes.

(2) Anything moved into, out of or within a plant pest zone shall be packaged, transported, handled, controlled and used in a manner that ensures that a plant pest or biological obstacle to the control of a plant pest is not spread within the Islands.

(3) If anything referred to in subregulation (2) or any remains of the thing or portion of it is to be disposed of, the owner or person having the possession, care or control of the thing or portion shall dispose of it in a manner that—

- (a) ensures that a plant pest or biological obstacle to the control of a plant pest will not spread; and
- (b) destroys any plant pest or biological obstacle to the control of a plant pest or ensures that the plant pest or biological obstacle to the control of a plant pest is non-viable.

Prohibiting or restricting the use of a place

32. (1) If the Service believes on reasonable grounds that a place in the Islands is infested or suspected of being infested or contains or is suspected of containing a biological obstacle to the control of a plant pest, a plant inspector may prohibit or restrict the use of the place until a decision is made whether to establish a plant pest zone under section 22 of the Ordinance.

(2) A prohibition or restriction under subregulation (1) shall be communicated by serving a written notice on the occupier or owner of the place or, if a plant inspector cannot, after the exercise of due diligence, find the occupier or owner, by posting the notice at the place in question.

(3) A prohibition or restriction under subregulation (1) takes effect on the communication or posting of the notice and continues during the period specified in the notice or until the notice is cancelled.

Inspection of vehicles

33. (1) If a plant inspector believes on reasonable grounds that any vehicle has on board any plant or plant product that is or could be infested or that constitutes or could constitute a biological obstacle to the control of a plant pest, a plant inspector may require the owner or person having the possession, care or control of the conveyance to—

- (a) halt the vehicle; and
- (b) permit the inspector to inspect the vehicle for the presence of a plant pest;

and if so directed by the inspector the owner or person shall—

- (c) unload the vehicle; and
- (d) treat, move or dispose of anything found on or in the vehicle.

(2) If a plant inspector thinks it necessary in order to prevent the introduction into the Islands or the spread within the Islands of any plant pest or biological obstacle to the control of a plant pest the inspector may require any vessel or aircraft used for transporting a regulated article to be subject to quarantine for a period the inspector directs.

(3) If a vessel or aircraft or part of it is subject to quarantine by virtue of sub-regulation (1), the master or captain shall carry out all instructions given by the plant inspector in that regard.

(4) If a plant inspector finds or suspects that a thing on board a vessel or aircraft is or contains a plant pest, the inspector may order the thing to be quarantined or destroyed or re-shipped to the port of export.

(5) The master, owner or charterer of a vessel or aircraft who refuses to comply with a direction of a plant inspector given under this rule commits an offence.

Labelling and packaging

34. (1) A regulated article shall be packaged separately from any unregulated article, and shall be labelled as such.

(2) Anything that enters the Islands that—

- (a) is a plant pest;
- (b) is or could be infested; or
- (c) constitutes or could constitute a biological obstacle to the control of a plant pest enters the Islands,

shall be marked on its container or accompanying invoice so as to identify the person importing the thing, the foreign exporter of the thing and, if applicable, the permit number or the phytosanitary certificate number.

(3) Anything referred to in subregulation (2) shall be packaged in a container in a manner that prevents the thing from becoming infested or spreading a plant pest or a biological obstacle to the control of a plant pest.

(4) Any plant or plant product imported under a waiver or exemption granted by an import condition or by regulations under section 59 of the Ordinance shall be clearly marked as such.

(5) If, under these Regulations, a certificate is required to state that a regulated article has been subjected to any examination or test, it is valid only if it states the dates on which the examination was carried out, the test was commenced, and reactions were taken.

(6) Any regulated article that is to be exported shall be packaged, contained and moved in such a manner as to prevent the article from spreading an animal disease.

(7) The scientific names of all regulated articles in a consignment shall be stated on the international sanitary certificate.

(8) This regulation does not preclude additional labelling requirements being imposed by import conditions.

Electronic documents

35. (1) Any document required to be provided to the Director, the Chief Plant Protection Officer or a plant inspector by or under the Ordinance may be provided in electronic form.

(2) If a document is provided in electronic form, an original hard copy of it shall, if requested in writing by the Service, be provided to the Service within a reasonable period after the document is provided in electronic form.

(3) The hard copy of a document referred to in subsection (2) is not required if the document is sent in electronic form directly from the phytosanitary certification authorities of a foreign country to the Service in accordance with an agreement between the Service and those authorities to provide documents directly to the Service in electronic form.

Receipts

36. If a plant inspector takes possession of any regulated article under the Ordinance or these Regulations, the inspector

shall give to the owner or person in charge of the article a written receipt, stating the nature of the article, the reason for taking possession, and the intended disposal of the article.

Fees

37. The fees set out in the Schedule are payable by an importer or exporter of a regulated article on an invoice from the Service.

Offence

38. A person who contravenes any provision of these Regulations commits an offence and is liable on summary conviction to a fine of \$10,000.

SCHEDULE

(Regulation 37)

FEES FOR PLANT HEALTH SERVICES

Permit Fees

- Import Permit
(home consumption/domestic usage) \$10.00
- Commercial Import Permit
(Day/ Single Entry) \$30.00
- Rush Single Entry Import Permit \$50.00
- Commercial Import Permit (1 Month) \$500.00
- Commercial Import Permit (3 Months) \$1,000.00
- Phytosanitary Certificate \$30.00

Inspection Fees

- Inspection during working hours \$75.00
- Inspection after working hours \$100.00
- Vessels Inspection (working hours) \$150.00
- Vessels Inspections
(after working hours or
weekend holidays) \$200.00
- Boxed/Break bulk cargo \$5.00 per box/sack
- Cruise Ships and Yachts \$50.00

Plant Quarantine Fees

- | | |
|-------------------------------------|-----------------|
| • Seedlings in trays | \$10.00 per day |
| • Individual plants in pots or bags | \$5.00 per day |
| • Cuttings | \$5.00 per day |
| • Other plant products | \$5.00 per day |

MADE this 10th day of July 2024.

JOSEPHINE CONNOLLY
MINISTER RESPONSIBLE FOR AGRICULTURE

EXPLANATORY MEMORANDUM

(This Note is not part of the Regulations)

These Regulations are made under the powers conferred on the Minister by various sections of the Plant Health Ordinance. They are intended to supplement the provisions in the Ordinance conferring powers on the Director, the Chief Plant Protection Officer and plant inspectors to control the movement into and in the Islands of plants and plant products. The main aim of those powers is to avoid or reduce the risk of plant pests and invasive plant species coming into or spreading in the Islands.

These Regulations should be read in conjunction with the Animal Health Regulations made under the Animal Health Ordinance, which supplement similar provisions in that Ordinance in relation to animals and animal products.

Part 2 of the Regulations adds some functions to those imposed on the Plant Health Service by the Ordinance.

Part 3 adds to or amplifies the powers conferred on the Service both in general, and in relation to plant quarantine.

Part 4 makes more detailed provisions than those in the Ordinance about the importation of plants and plant products, including the requirement for import permits and the imposing of import conditions.

Part 5 supplements the requirements in the Ordinance relating to the export of plants and plant products.

Part 6 deals with various matters that were not included in the Plant Health Ordinance when enacted but which were contemplated as being dealt with by regulations. It provides for charging of fees and creates an offence.

The Schedule sets out the fees payable for various services provided by the Plant Health Service.